

24STCV09235 24STCV09235

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 24STCV09235 Hearing Date: July 2, 2026 Dept: 414

24STCV09235 Tomika

Smalls v. Lawrence Title

Thursday, July 2,

2026

[TENTATIVE] ORDER DENYING DEFENDANT

LAWRENCE TITLE'S APPLICATION FOR OSC RE: CONTEMPT; REQUEST FOR IMPOSITION OF
SANCTIONS AGAINST PLAINTIFF IN THE AMOUNT OF \$3,852.50 (9842)

I.

BACKGROUND

The first amended complaint alleges that Defendant employed Plaintiff as a resident/ property manager. Plaintiff alleges nine causes of action for wage and hour claims under the Labor Code and a claim for unlawful/unfair business practices.

On

April 10, 2026, the court granted Defendant's motion to enforce the parties' settlement agreement under Code of Civil Procedure § 664.6. Plaintiff was ordered to (1) sign the Stipulation for Judgment of Possession; and (2) execute a dismissal of her cross-complaint in Case No. 25NNCV01902 (the Burbank matter) to be filed along with Title's dismissal of the complaint. (M.O. 4/10/26.) The court clerk served the order on Plaintiff by mail on the same date.

Defendant

now requests that the court set an order to show cause re contempt and impose

sanctions against Plaintiff for Plaintiff's failure to comply with the court's order. Instead of complying with the order, Plaintiff filed a notice to relate this lawsuit to the Burbank lawsuit.

II.

LEGAL STANDARDS

In matters of indirect contempt, the court may issue a warrant of commitment upon an order to show cause. (Code Civ. Proc., § 1212.) After notice to the opposing party's counsel, and if the court is satisfied with the sufficiency of the affidavit, the court "must sign an order to show cause re contempt in which the date and time for a hearing are set forth. (§ 1212; *Arthur v. Superior Court* (1965) 62 Cal.2d 404, 408 ['an order to show cause must be issued']; *Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 1999) § 9:715, p. 9(II)–47.) The order to show cause acts as a summons to appear in court on a certain day and, as its name suggests, to show cause why a certain thing should not be done." (*Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, 1286.)

Disobedience of any lawful judgment, order, or process of the court is punishable by contempt. (Code Civ. Proc., § 1209 (a)(5).) The facts essential to a court's jurisdiction over contempt proceedings are "(1) the making of the order; (2) knowledge of the order; (3) ability of the respondent to render compliance, (4) willful disobedience of the order." (*Van v. LanguageLine Solutions* (2017) 8 Cal.App.5th 73, 81; *Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.)

III.

DISCUSSION

The court's file reflects that the clerk entered dismissal of the Burbank action pursuant to a request filed by Gary Granchow, counsel for Plaintiff Title. (Dism. 6.9.26.) The amended Cross-Complaint in the Burbank action filed by Tomika Smalls was dismissed by the court for lack of prosecution. (M.O. 6.9.26.) Accordingly, there is no basis for a contempt hearing. Defendant does not assert that Plaintiff failed to sign a stipulation for Judgment of Possession as ordered.

Plaintiff's

opposition raises numerous objections and relief against Defendant for alleged record tampering, none of which are relevant to Defendant's motion. Plaintiff filed a supplemental declaration in support of her request for an order to show cause. Plaintiff's request for affirmative relief should be raised by a properly noticed motion, not in an opposition to a motion for different relief.

IV.

CONCLUSION

The

court's subsequent order dismissing the cross-complaint in the Burbank action renders this motion moot. Accordingly, it is DENIED.